

Further Directions Order (3) - the action pack

WC/2024/227 Shepherd v Workers' Compensation Regulator | order dated 19 August 2026, received 20 August 2026 | built 20 August 2026

INTERNAL. This document is never filed, never served, and never shown to the practice, the Regulator, the employer or the union. Every quotation from the QIRC Workers' Compensation Appeal Guide (version 2.10, 11 March 2025) and the Industrial Relations (Tribunals) Rules 2011 below was verified from source on 20 August 2026.

THE ORDER, IN ONE TABLE

Dir.	Who	What	By
1	Appellant	File in the Registry AND serve a list of names of all witnesses	4pm Wed 9 Sept 2026
2	Appellant	Serve, do NOT file - an outline of evidence per lay witness (one A4 page each), as well as any expert reports relied upon	4pm Wed 9 Sept 2026
3	Respondent	File and serve its witness list	4pm Wed 30 Sept 2026
4	Respondent	Serve, not file - outlines and expert reports	4pm Wed 30 Sept 2026
5	Appellant	Contact the Registry to proceed to a second s 552A conference, or to hearing . Warning that inaction may lead to abeyance and lapse under rule 230	after directions complete

Opening recital: *"FURTHER TO the correspondence of the Appellant dated 10 August 2026"* - i.e. the order issues in response to the withdrawal of the rule 64G application. Nine days from withdrawal to order. Signed J.C. Dwyer, Industrial Commissioner; sealed.

WHAT THE ORDER DOES NOT SAY - AND IT IS ALL FAVOURABLE

No mention of the rule 64G application, the Form 29, Metro South Health, the mention of 7 August 2026, any concession made at it, or costs. This is the safe form: recite the letter, characterise nothing. **Nothing adverse about that hour exists on the record, and the non-party is simply gone from the matter.**

[1] THE FIRST PROBLEM IS NOT THE DEADLINE - IT IS THE PRECONDITION

The working record of the consultation of **12 August 2026** states: *"Dr K will not produce the report responding to the employer's medical inquiry until the employer identifies WHY the information was requested."* The same entry flagged an open question - whether that precondition extends to the causation report on Cory's own instruction - and **that question was never closed** before the instruction was sent on 17 August. The 17 August redesign merged both reports into one.

RISK: the appeal's causation evidence may be gated on Metro South Health answering a basis question it has not answered in seven weeks. Resolve it with one neutral question to the practice today - do not name the precondition, do not argue it, simply ask what is outstanding.

THE CRITICAL PATH

Date	Do
Thu 20 Aug	Email the practice - timeframe, and what is outstanding at their end. The only thing that must go today.
Thu 20 Aug	Begin the witness list and the outlines - the half entirely within your control.
Fri 21 Aug	Roberts / Petering meeting. The appeal timetable does NOT enter that room - unless the practice says the report is gated on MSH, in which case put the basis question in writing the same day.
Mon 24 Aug	Employment track: cl 10.3.6 deemed refusal. Verify the EB12 clause numbering before citing it.

Date	Do
Wed 26 Aug	If the report date is after ~2 Sept: consent email to Ms Matheson, asking her attitude by Fri 28 Aug.
Fri 28 Aug	If the practice is silent: telephone, ask the same question, then record the answer in a one-line email.
Mon 31 Aug	Registry extension email.
Wed 2 Sept	HARD BACKSTOP for the registry email. Never later.
Wed 9 Sept 4pm	FILE + SERVE the witness list. SERVE the outlines and any expert report.
Wed 9 Sept	Calderbank #3 - only if the report is in hand. 21 days, expiring about 30 Sept.
Wed 30 Sept	The Respondent's list lands. Check it for Ms Taylor and Ms Reese.
Early Oct	Decide direction 5: second conference or hearing.

[2] THE TRAP THAT GOVERNS THE WITNESS LIST

QIRC Workers' Compensation Appeal Guide, Part 7.6.2, verbatim:

"After the examination-in-chief has finished, **the party who did not call the witness** will conduct the cross-examination."

If you list Ms Taylor, you call her. You then conduct examination-in-chief - no leading questions, no confrontation - and Ms Willson cross-examines her. The route the Commission itself identified on 7 August (put it to her, and the Regulator must then displace it) **exists only if the Respondent calls her.**

The hearing plan at skill/references/HEARING-PLAN.md section 4.0 previously said the opposite - that if they do not call her, she should be listed and summonsed. That has been corrected in the file. Listing and summonsing gets her into the room; it does not get you cross-examination.

Guide Part 4.9 also sets the test for who belongs on the list: the persons listed "*should be reflected in the facts set out in your Statement of Facts and Contentions*"; and "*If you fail to call someone who could provide relevant evidence to your matter it may count against your case.*" That warning is answered by the reservation paragraph in the covering letter, not by listing people.

[3] THE EXTENSION - SHAPE OF THE ASK

Guide Part 4.4, verbatim: "*An extension can be sought by submitting the request in writing to qirc.registry@qirc.qld.gov.au and explaining why the extension is sought. **A brief email will be sufficient.** You should also ask the other party, or parties, whether they consent to the extension of time. Within your request for extension you **must** inform the Registry or the Commission of the other party or parties' attitude to the extension, if known.*"

- **Extension, never vacation.** Direction 5 makes progress an affirmative duty. Asking to unwind a timetable days after it was set reads as retreat.
- **Direction 2, expert reports only.** Comply in full with direction 1 and with the lay outlines - both are entirely within your control.
- **Never touch directions 3 or 4.**
- **Propose 4pm 30 September 2026** - the date the Commission has already fixed by directions 3 and 4. Nothing moves, and the Respondent loses not one day. Lighter alternative to offer in the same letter: serve any expert report within seven days of receipt and in any event by that date.
- **The strongest paragraph is already on the record.** The List of Documents served 5 August 2026 states at Part 5, verbatim: "*The Appellant will disclose, upon receipt, the report of his treating psychiatrist addressing diagnosis, causation and chronology.*" The Respondent has been on notice for a fortnight. This is not late notice.
- **Precedent in this matter:** on 22 August 2025 this registry vacated a directions order on the appellant's own written correspondence, the next day.

[4] DIRECTION 5 - WHAT A SECOND s 552A CONFERENCE ACTUALLY IS

Correction to an earlier working assumption. Guide Part 5.1, boxed, verbatim:

"**No commercial settlement is possible at the conference. Conferences for workers' compensation matters are not intended to facilitate conciliations.** Following the conference, the Respondent may decide to review its position or **consider conceding the appeal where new information is presented that they may not have yet considered.**"

So it is not a settlement vehicle - it is a **concession opportunity**, and the new information is the report. Guide 5.1 also states: "*The Member of the Commission who chairs such a conference will not be the Member who hears the appeal*" - so **Commissioner Dwyer will not hear this appeal**, and would chair a second conference.

Decide in early October, not now, on two inputs: what the report says, and what the Respondent serves on 30 September. Recommended shape when the time comes: request the conference and, in the alternative, ask that if the Commission considers a conference would not assist, the matter be listed for hearing. That converts the fork into a single request that cannot produce a null result.

Rule 230 (Industrial Relations (Tribunals) Rules 2011, p 138) requires "*no action ... for at least 1 year since the last action was taken by the applicant*". The abeyance warning is boilerplate, not a near-term threat - but it is why every step from here should look like progression.

[5] MECHANICS - THE THINGS THAT ARE EASY TO GET WRONG

- **Direction 1 is FILE AND SERVE. Direction 2 is SERVE ONLY - do not file the outlines or the report.** This is the commonest self-represented error.
- No prescribed form for the list. Guide 4.9: *"there is no set form for this"*.
- Filing: qirc.registry@qirc.qld.gov.au, business hours, under 30 pages (Practice Direction 3/2021).
- Outlines: Guide 4.10 - *"You do not need to fill the entire A4 page, it is just a brief overview of the material they will cover."* Brevity is compliance, not weakness.
- **Experts go on the direction 1 list as well.** Direction 1 says "all witnesses"; direction 2 merely substitutes the report for the one-page outline in an expert's case.
- Guide 7.6.5, boxed: *"presenting a medical report on its own cannot be considered without having the expert witness give evidence orally to support that document and being available for cross-examination by the other party."* The report alone is worth little - Dr Krishnaiah must be available.
- Witness costs, Guide 10.1: travel plus conduct money at the Supreme Court civil rate, and *"Expert witnesses are entitled to a higher rate"*. No wages since 13 July 2026 - an independent reason for a two or three name list.
- Attendance notices (Form 32 and 32A/B/C) come later, after hearing dates are set - Guide 7.6.4. Nothing to do about compulsion now.
- **WCRA s 554**, separate from this order: exchange every document to be adduced at least **10 business days** before the hearing, or lose the right to rely on it.

[6] CALDERBANK #3 - TIMING

- Serve the report **alone** the moment it arrives, as continuing disclosure, with no offer attached. Disclosure carries no ask; an offer bundled with it contaminates it.
- Make the offer **on 9 September or the next business day**, open 21 days, expiring about 30 September - the Respondent's own directions date. Their authorisation loop ran 15 days on offer #2, so a 10 September send expires 1 October: one day too late.
- **If the report has not arrived by early September, do not make the offer.** Its entire value is a function of the new material. Hold it.
- Reserve window: about seven days after a second s 552A conference - the last cheap moment before hearing preparation costs land.
- Scope: the compensation appeal only. The parallel tracks are expressly reserved. Regulator only; never to the employer.
- Offers #1 and #2 were rejected when the causation field was empty, and both rejections were defensible on that basis. What makes #3 different must be visible in its first three lines.

[7] THE LEAKAGE RULE - THE HIGHEST-CONSEQUENCE DISCIPLINE FROM NOW TO OCTOBER

The two tracks share one document - the report - and nothing else. Between now and 9 September you will be drafting employment-track and appeal-track material on the same days.

Employment vocabulary - psychosocial hazard, exclusion, conflict of interest, Stage 1 and Stage 2, reasonable adjustment, the public interest disclosure - **must not appear anywhere in the 9 September package.**

Appeal vocabulary - the statutory exclusion, reasonable management action, the Regulator's admissions, the seven-hour break as a pleaded breach - **must not appear in anything sent to HR, the union or the practice.**

The test, on every document before it leaves: could this sentence be quoted back at me in the other matter?

[8] OPEN ITEMS

1. **The precondition boundary.** The whole plan branches on it. Answered by the practice email.
2. **Full legal names** for the list, verified from a primary source. The record carries "Chloe Taylor", "Chloe Jane Taylor" and "Chloe Donovan-Taylor"; and there is a different person, Chloe Tyler, in 2025 correspondence - do not confuse them. Verify Dr Krishnaiah's full name from his own letterhead.

- 3. Whether Metro South ever served a notice of its reasonable expenses of production** under rule 64I - due about 11 July 2026. If none was served the point is spent by effluxion of time. Do not raise it with them.
- 4. Ms Carolyn Jeffrey.** Your decision. Recommendation: do not name her on 9 September.
- 5. Paragraph 7 of the outline** - whether the complaint of 13 May 2024 gets a bare factual line.